

**BEFORE THE  
FEDERAL MARITIME COMMISSION**

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HAPAG-LLOYD, AG and HAPAG-LLOYD  
(AMERICA) LLC – POSSIBLE VIOLATIONS  
OF 46 U.S.C. § 41102(c)

FMC Docket No. 21-09

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**JOINT PETITION FOR APPROVAL OF PROPOSED SETTLEMENT AGREEMENT**

Respondent Hapag-Lloyd AG and the Bureau of Enforcement (jointly the “Parties”) submit this Joint Petition for Approval of Settlement. This Joint Petition is submitted to the Commission, rather than to the Administrative Law Judge (“ALJ”), because the issuance of an Initial Decision in this proceeding means the case is no longer before the ALJ. This is consistent with the Commission’s May 11, 2022 Notice of Extension of Time to File Exceptions, which stated that the case is before the Commission.

The Parties have mutually agreed to settle their disputes and the issues that are the subject of this Proceeding, FMC Docket No. 21-09. A Joint Memorandum in Support of the Proposed Settlement and a copy of the Settlement Agreement executed by the Parties accompany this

Petition. For the reasons set forth in the Joint Memorandum in Support of the Proposed Settlement, the Parties submit that (1) the Settlement Agreement should be approved by the Commission, and (2) upon approval of the Settlement Agreement, BOE's claims against Respondents should be dismissed with prejudice.

The Parties further request that the deadline for the filing of exceptions to the Initial Decision of the Administrative Law Judge in this proceeding be stayed pending a ruling on this Petition, and that Respondent and BOE be afforded a reasonable amount of additional time to file said exceptions in the event this Petition is denied.

Respectfully submitted,

Rohde, Wayne  
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**CERTIFICATE OF SERVICE**

I hereby certify that on this 18<sup>th</sup> day of May 2022, a copy of the foregoing Petition has been served upon all counsel of record in

MARYANNE  
MUNDY

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Maryanne G. Mundy

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